

PCU325203 Jr Valencia, Jose Elias et al vs. ALLSTATE INSURANCE COMPANY

County: tulare

Division: Civil Law and Motion

Department: 19

Hearing date: 2026-08-18

Motion: Defendant's Motions to Compel Initial Responses to (1) Form Interrogatories as to Plaintiff Morales; (2) Special Interrogatories as to Plaintiff Morales; (3) Requests for Production as to Plaintiff Morales; (4) Form Interrogatories as to Plaintiff Valencia Jr; (5) Special Interrogatories as to Plaintiff Valencia Jr; (6) Requests for Production as to Plaintiff Valencia Jr; Defendant's Motion to Deem Admissions Admitted as to (7) Plaintiff Morales and (8) Plaintiff Valencia Jr. Sanctions

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Re: Jr Valencia, Jose Elias et al vs. ALLSTATE INSURANCE COMPANY

Case No.: PCU325203

Date: August 18, 2026

Time: 8:30 A.M.

Dept. 19-The Honorable Russell P. Burke

Motion: Defendant's Motions to Compel Initial Responses to (1) Form Interrogatories as to Plaintiff Morales; (2) Special Interrogatories as to Plaintiff Morales; (3) Requests for Production as to Plaintiff Morales; (4) Form Interrogatories as to Plaintiff Valencia Jr; (5) Special Interrogatories as to Plaintiff Valencia Jr; (6) Requests for Production as to Plaintiff Valencia Jr;

Defendant's Motion to Deem Admissions Admitted as to (7) Plaintiff Morales and (8) Plaintiff Valencia Jr.

Sanctions

Tentative Ruling:

(1) – (6) To grant the motions and order responses due no later than thirty (30) days from notice of this ruling;

(7) and (8) To deem Admissions Nos. 1 – 65 admitted as to each Plaintiff;

to issue sanctions against Plaintiff Morales and counsel of record, jointly and severally, in the total amount of \$940 due no later than thirty days from notice of this ruling;

to issue sanctions against Plaintiff Valencia Jr and counsel of record, jointly and severally, in the total amount of \$940 due no later than thirty days from notice of this ruling; Defendant to give notice.

Facts Common to (1) through (8)

In this matter, Defendant served Form Interrogatories, Special Interrogatories, Requests for Production and Requests for Admissions on Plaintiffs Morales and Valencia Jr via counsel on May 8, 2026.

Responses were due no later than June 9, 2026.

No responses were received.

On July 22, 2026, Defendant filed these motions to compel initial responses and deem admissions admitted.

Further, Defendant seeks sanctions against Plaintiffs and counsel of record as follows as to \$660 per motion, consisting of 1.5 hours at the rate of \$400 per hour plus a \$60 filing fee as to each motion.

No opposition appears to have been filed.

Authority and Analysis

(1), (2), (4), (5) - Interrogatories

Based on Plaintiffs' failures to respond to the first sets of form and special interrogatories, the Court orders under, Code of Civil Procedure section 2030.290(a), that Plaintiffs provide full and complete verified responses without objection to Defendant's first sets of form interrogatories and first sets of special interrogatories, within thirty (30) days after service of the notice of this ruling for this motion. Defendant shall give notice.

(3), (6) – Requests for Production

Based on Plaintiff's failure to respond to the first set requests for production of documents, the Court orders under, Code of Civil Procedure section 2031.300(a) that Plaintiff provide full and complete verified responses without objection to Defendant's first set of requests for production of documents, within thirty (30) days after service of the notice of this ruling for this motion. Defendant shall give notice

(7), (8) – Deem Admissions Admitted

Code of Civil Procedure section 2033.280 states that if a party to whom requests for admissions have been directed fails to serve a timely response, the propounding party may move for an order that the truth of any facts specified in the requests for admissions be deemed admitted. Here, Plaintiffs have failed to serve a timely response and Defendant has moved for orders to deem the admission admitted.

Based on the foregoing, the Court grants Defendant's motions. The facts and allegations alleged in Requests for Admissions 1 through 65 of Defendant's First Sets of Requests for Admission as to each Plaintiff shall be deemed admitted.

Sanctions

Under Code of Civil Procedure sections 2033.280(c) (Admissions), 2030.290(c) (Interrogatories) and 2031.300(c) (Requests for Production), Defendant requests sanctions.

The Court will reduce the hourly rate to \$350. The reasonable hourly rate is that prevailing in the community for similar work." (PLCM Group Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.) "The experienced trial judge is the best judge of the value of professional services rendered in his court." (Id.)

Further, the Court will permit one half hour per motion. The Court notes there is no meet and confer requirement and all that is necessary to obtain the relief requested on these motions to compel initial responses or deem admission admitted is that the other party failed to respond within the designated time.

The Court will award the \$60 filing fee as each of the eight motions.

the Court imposes sanctions the issues sanctions as follows:

\$940 against Plaintiff Morales and counsel of record, jointly and severally, due within thirty (30) days after service of the notice of this ruling for this motion. Defendant shall give notice

\$940 against Valencia Jr and counsel of record, jointly and severally due within thirty (30) days after service of the notice of this ruling for this motion. Defendant shall give notice

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.